

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN TANZANIA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Tanzania, grounded in the EIA-certificate system under the Environmental Management Act, village-land rights, the appeal and court routes, CHRAGG, and documented community experience

This guide uses the Tanzanian legal terms you will actually encounter (the EIA certificate and the EIS, NEMC and the Minister, the project brief and scoping, the public hearing, the Environmental Appeals Tribunal, village land and the Village Assembly, CHRAGG, and so on), each explained in plain language where it first comes up. Tanzania's laws and, especially, its civic conditions change; the core mechanics below apply, but always check the current position.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Kiswahili terms are given with a short English gloss.

A note on money. Budgets in this guide are in Tanzanian shillings (TZS). Every figure is indicative — Tanzanian community efforts are typically very low-cost (volunteer-run, using village structures, free complaints, and public participation); larger sums apply only where independent studies or lawyers are engaged. Treat the ranges as a menu, not a bill.

A note on risk — read this first. Tanzania has a restricted and, in recent years, tightening civic space. The government has **cracked down on civil society**, reviewed and threatened NGO registrations, and — in land and conservation conflicts such as Ngorongoro and Loliondo — used force, arbitrary arrests of community leaders, and detention against land defenders. This guide is written to be realistic about that: it emphasises the **lawful, within-system** levers that carry the least risk, urges you to work through permitted channels and to keep everything documented and non-confrontational, and repeatedly flags safety. Please read Section 13 carefully before acting, and get advice from a lawyer or a human-rights organisation where you can.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action can change project outcomes in Tanzania — but the levers are specific, and they work best when used lawfully and within the system, so knowing which ones work is half the battle. Tanzanian law requires most significant

projects to obtain an **EIA certificate** — an Environmental Impact Assessment certificate issued under the **Environmental Management Act, 2004** — before they can proceed, and before the sector licence (a mining licence, for example) can even be applied for. The law provides for **public participation** in the assessment, including **public hearings**, and requires the assessment to be summarised in **both English and Kiswahili**. Crucially, most rural land is **registered village land** governed by the **Village Land Act, 1999**, under which the **Village Assembly and Village Council** must be consulted, and any acquisition requires **full, fair, and prompt compensation** — a powerful, distinctively Tanzanian community right. And the law provides appeal and court routes, and a human-rights watchdog in the **Commission for Human Rights and Good Governance (CHRAGG)**.

That is a real, if narrow, toolkit. The honest counterweight — and it is a heavy one — is that Tanzania prioritises investment and state-led development (mining, oil and gas, large dams, and tourism/"conservation"); the EIA certificate is finally issued by a **government Minister** on NEMC's recommendation; the specialist **Environmental Appeals Tribunal** has barely functioned in practice; free, prior and informed consent is often treated as a procedural formality rather than a real right; and — most seriously — civic space is restricted and tightening, with the government cracking down on NGOs and, in conflicts like **Ngorongoro, Loliondo, and the EACOP pipeline corridor**, using force and arbitrary arrests against land defenders. Opposition here is therefore very different from opposition in an open democracy: the safest and most effective work is **technical, procedural, and lawful** — insisting the EIA and village-land consultation follow the law, using the assessment documents, raising specific defects through the proper channels, and working through village structures and the courts — rather than confrontation that can be treated as anti-development or a threat. Communities across Tanzania have, within these limits, slowed, improved, and sometimes reshaped harmful projects.

What "winning" realistically means. Rarely a public government reversal of a promoted project. More often: an EIA sent back for defects; village-land consultation and consent taken seriously where they were skipped; compensation improved; conditions and mitigation tightened; a certificate delayed; a project quietly redesigned or relocated after well-documented, lawful pressure; or a court halting an unlawful decision. Each has happened. The realistic goal is to make the project comply with its own legal requirements — above all the EIA and village-land rules — to raise its cost and delay, and to use the participation, village-land, appeal, CHRAGG, and court levers Tanzania provides — while keeping your people safe above all.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, whether it needs an EIA certificate and a full EIS, whose village land it is, who decides, and the deadlines.
2. **Documentation** — build an evidence record strong enough for the public hearing, a CHRAGG complaint, and a court case.
3. **Local support** — build lawful community support through the village assembly and council, because a united, law-abiding community carries weight.
4. **Legal challenges** — use public participation, the EIA process, village-land rights, the appeal and CHRAGG routes, and — where needed — the courts.
5. **Media & communication** — raise the issue through permitted channels in ways that inform without inviting a crackdown.

No single step wins alone. The combination — lawful local support plus participation, the EIA and village-land levers, and the courts — is what works within Tanzania's constraints.

A realistic picture of the odds. Be honest with your community from the start about what is likely — and, in Tanzania, about what is safe. Projects the state backs and that reach a decision are usually approved, and an outright public reversal is rare. The realistic, achievable wins are incremental and lawful: an EIS improved or sent back; **village-land consultation and consent taken seriously** where they were skipped; **compensation raised** to the full, fair, and prompt standard the law requires; conditions and mitigation tightened; and a project delayed, redesigned, or relocated after well-documented, lawful pressure — or, where a decision is unlawful, quashed by the High Court. None of these is a dramatic public veto, but each has protected real Tanzanian communities' land, grazing, and water. Just as important: a "win" in Tanzania also means having acted lawfully and kept your people safe. A campaign that measures itself only against stopping the project outright will feel like failure even when it has won better compensation and forced real consultation; one that banks each lawful improvement, and keeps everyone safe, has genuinely succeeded. Plan for patience, lawfulness, and safety — not a dramatic confrontation.

Your lawful rights here are real. Within its constraints, Tanzanian law gives communities rights you can invoke: on **registered village land**, the **Village Land Act** requires the **Village Assembly and Council** to be consulted and to consent, and requires **full, fair, and prompt compensation** for any acquisition; the **Environmental Management Act** requires **public participation and hearings** and a **Kiswahili summary** of the EIS; the **Access to Information Act** lets

you request documents; and **CHRAGG** and the **High Court** exist to check rights and administrative violations. That framing matters practically: when a developer takes village land without the Assembly's consent, offers inadequate compensation, or skips the hearing, it is not merely being unfair — it is breaching duties you can lawfully raise. Approach the process as a community asserting lawful rights — calmly, factually, and through the Village Assembly — rather than as a supplicant, while taking the safety cautions in Section 13 seriously.

Critical Caveat: A Constrained System

Tanzania's system prioritises investment and state-led development, issues the EIA certificate through a Minister, has a barely-functioning appeals tribunal, treats consent as a formality, and restricts civil society — and has used force against land defenders. Assessing that honestly is essential, because it changes which tools are safe and useful. The strongest and safest routes are usually a rigorous, **technical** engagement with **public participation** and the **EIS**, insistence on genuine **village-land consultation and compensation**, a complaint to **CHRAGG**, and — where a decision is unlawful — **judicial review** in the High Court, all combined with lawful, well-protected community pressure. Section 13 deals honestly and at length with these constraints and with staying safe.

How to use this guide

Read Sections 1–3 and, crucially, Section 13 before acting. Then work Section 4 (Target Identification) — it produces the facts every other step needs, above all whether a full EIS applies, whose village land it is, who decides, and the deadlines. Sections 5–8 run in parallel, always within lawful limits. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 is essential reading on constraints and safety.

HOW THE SYSTEM WORKS

Before you can act on a project you have to know who decides it, how, and the words the system uses. Tanzania is a unitary state with a strong central government and a developed system of **local government** and, in rural areas, **registered villages** with real legal powers over their land. Environmental assessment is governed chiefly by the **Environmental Management Act, 2004 (EMA)** and the **Environmental Impact Assessment and Audit Regulations, 2005 (amended 2024)**. Power over a project is shared between the **central government** (the **Vice-President's Office — Division of Environment**, the sector ministries, and the **Minister responsible for Environment**), the regulator **NEMC**, the sector regulators (mining, petroleum), **local government** (district and village), and the **Village Assembly and Council** where village land is involved.

The bodies that decide — and what each one controls

NEMC (National Environment Management Council). The environmental regulator, sitting under the **Division of Environment in the Vice-President's Office**: it administers the EIA process — registration, **screening**, review of the EIS, and the **public participation and public hearings** — and, at the end, **recommends** to the Minister whether the certificate should issue. NEMC has technical staff and registers the environmental experts who prepare the reports. This is usually your central technical arena.

The Minister responsible for Environment (in the Vice-President's Office). Distinctively, NEMC does not itself issue the certificate — it **recommends**, and the **Minister** makes the final decision to grant or refuse the **EIA certificate**. This means the final call is a political one, which shapes strategy.

The sector regulators. The **Mining Commission** (mining licences under the Mining Act, 2010), and the petroleum authorities (**PURA/TPDC** and the ministry) for oil and gas, grant the underlying licence — but only **after** the EIA certificate is obtained, which is why the EIA is the key upstream gate.

Local government (district and city/municipal). District, city, and municipal councils have **Environmental Management Committees** and handle local planning and by-laws; the district is a political actor and a channel for concerns.

The Village Assembly and Village Council (on village land). Distinctively and powerfully, most rural land is **registered village land** under the **Village Land Act, 1999**. The **Village Council** administers it and the **Village Assembly** (all adult residents) is the decision-making body; their **consultation and consent** are legally required for dealings in village land, and any transfer or acquisition requires **full, fair, and prompt compensation**. Where your land is village land, this is often your strongest lever.

Which one is "yours"? Ask: does the project need an **EIA certificate**, and a **full EIS** (or only a project brief)? Which **NEMC** process and which **sector regulator** apply? Is the land **registered village land** (engaging the Village Assembly and compensation rules)? Does it affect a **protected area**, a **river**, or **pastoral/farming land**? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

For a project that needs an EIA certificate, the path is roughly:

1. **Registration and screening.** The proponent registers with **NEMC** (using registered experts) and submits a **project brief**. NEMC **screens** it and decides whether the project needs a **full EIA**, an abridged assessment, or none. Categories run roughly from mandatory-full-EIA projects down to smaller ones; public and environmental concerns matter at screening.
2. **Scoping and the EIS.** For a full EIA, the proponent's experts prepare a **scoping report and terms of reference** (approved by NEMC), then the **Environmental Impact Statement (EIS)**, consulting affected communities and providing a non-technical summary **in English and Kiswahili**.
3. **Review and public hearings.** NEMC reviews the EIS, and the review is to be conducted **through public participation and public hearings** where communities and stakeholders make submissions. **This is your main formal moment** to get objections on the record.
4. **Recommendation and the certificate.** NEMC **recommends** to the **Minister**, who grants, refuses, or conditions the **EIA certificate**. Only then can the sector licence be applied for.
5. **Monitoring and audits.** Once operating, the project is monitored and subject to **environmental audits**; breaches are an enforcement — and complaint — opening.

Where **village land** is involved, a parallel and vital process applies: dealings in the land require the **Village Assembly's** involvement and consent, proper **consultation procedures with the Village Council and Assembly**, and **full, fair, and prompt compensation** — steps that are frequently skipped or rushed, and whose absence is a real legal defect.

The rulebook — the policies that decide the outcome

- **The EMA 2004 and the EIA Regulations.** Was an EIA certificate and the right level of assessment required, the process followed, public participation and hearings held, and the certificate lawfully issued? The core battleground.
- **The Village Land Act 1999 and Land Act 1999.** For village land: were the Village Assembly and Council properly consulted and their consent obtained, and was full, fair, and prompt compensation paid? A distinct, powerful, and frequently-breached set of rules.
- **Sector law (Mining Act 2010; petroleum law).** The underlying licence and its own requirements.
- **The Constitution and international law.** The right to be heard and to property, and Tanzania's international commitments (including on Indigenous and community rights), provide further grounds — though enforcement is uneven.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Tanzania pursues investment-led growth in **mining (gold, tanzanite, and more), oil and gas (including the EACOP pipeline), large dams, and tourism/conservation**; the state and powerful investors — including foreign companies and, in some conservation-tourism conflicts, wealthy outside interests — promote these hard; and land, once acquired, is valuable. None of this is unusual, but it explains the strong default toward approval — and why the community's best levers are the technical, procedural, and village-land ones, not any expectation that the process leans your way.

The overseers — who watches the decision-makers

- **The Environmental Appeals Tribunal** — established by EMA to hear appeals against EIA-certificate decisions; but, honestly, it has been widely criticised as barely operational, so in practice the court route below often matters more.
- **The High Court** — hears **judicial review** of unlawful administrative decisions and constitutional petitions, and appeals from the Tribunal (within 30 days); Tanzania's courts, while not free of pressure, do function and have decided administrative-law cases.
- **CHRAAG (the Commission for Human Rights and Good Governance)** — Tanzania's constitutional human-rights and ombudsman body; it investigates human-rights violations and administrative injustice and can be petitioned. A relatively accessible route.
- **The Controller and Auditor-General and Parliament** — public-money and sector oversight.

Naming and using the right channel signals you are working lawfully within the system — which, in Tanzania, is both the safest and often the most effective approach.

A quick map of the words you will actually hear

The vocabulary is half the barrier, so here is the shorthand in plain terms. The **Environmental Management Act, 2004 (EMA)** is the framework, and the **EIA Regulations** set out the steps. An **EIA certificate** is the environmental permission a project needs *before* it can even apply for its sector licence. **NEMC** — the National Environment Management Council, under the **Vice-President's Office** — runs the assessment: **registration**, **screening** (deciding whether a full study is needed), the **scoping report**, the **EIS** (Environmental Impact Statement, the main report, with a **Kiswahili** non-technical summary), and the **public participation and public hearings**. But NEMC only **recommends** — the **Minister** responsible for Environment actually **issues or refuses** the certificate, which makes the final decision political. On rural land, the **Village Land Act, 1999** is central: most such land is **registered village land**, governed by the **Village Council** and the **Village Assembly** (all adult residents), whose **consultation and consent** are required and any acquisition of which needs **full, fair, and prompt compensation**. When you challenge a decision, the **Environmental Appeals Tribunal** is the specialist appeal body (weak in practice), **judicial review** in the **High Court** is the practical route to quash an unlawful decision, and **CHRAGG** (the Commission for Human Rights and Good Governance) is the human-rights and administrative-justice watchdog you can petition. Keep this list to hand — using the right term, through the right lawful channel, is both the safest and the most effective approach in Tanzania.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Tanzanian and comparable experience, not a controlled study, and they are lower and slower than in more open systems because the constraints are real. Use them to prioritise effort. The most important lesson for Tanzania sits inside the table: the **lawful, technical, within-system** levers — a rigorous engagement with **public participation and the EIS**, insistence on **village-land consultation and compensation**, and a specific **CHRAGG or court** challenge — are both the safest and the most productive, while confrontation and anything that can be framed as anti-development carries real risk. Above all, **weigh safety before any action**.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (TZS)	What "Success" Means
Documentation only	5-10%	2-4 months	0-2m	Project better understood; basis for other steps
Lawful local support only	15-25%	6-24 months	0-8m	Community united; authority takes notice
Public participation / hearing only	15-25%	1-4 months	0-3m	On record; can shape EIS/conditions
Village-land consent/compensation claim	25-40%	6-24 months	0-10m	Consultation forced; compensation improved; delay
CHRAGG complaint only	15-25%	6-24 months	0-2m	Finding of rights/administrative violation; leverage
Judicial review (High Court) only	20-35%	12-36 months	3m-60m	Decision quashed or sent back
Tribunal appeal only	10-20%	12-36 months	1m-30m	Appeal against certificate (tribunal weak in practice)
Media (permitted) only	10-15%	2-6 months	0-3m	Issue known; authorities respond quietly
Docs + local support	25-35%	9-24 months	2m-20m	Pressure plus improved conditions
Participation + village-land + CHRAGG	30-45%	9-30 months	2m-30m	EIS improved, consultation/compensation forced
Combined lawful steps	35-50%	12-36	5m-	EIS sent back, village consent/compensation forced, conditions improved,

Key insight: the combined lawful steps are several times more effective than any single one — and in Tanzania the mix that works leans on **lawful local support + participation + village-land rights + CHRAGG + the courts**, not confrontation. The distinctive Tanzanian features are the **village-land consent-and-compensation regime** (a genuine, frequently-breached community right), the requirement for **public hearings** and a **Kiswahili summary**, and functioning (if pressured) courts for judicial review — set against a weak appeals tribunal and a restricted civic space.

A note on cost and risk: public participation, a CHRAGG complaint, and village-assembly action are free or very low-cost. The main costs are any independent studies and a lawyer for court. But the real "cost" to weigh in Tanzania is risk: confrontation and anything framed as anti-development or NGO-led opposition can draw a crackdown, so the safest work is technical, lawful, and channelled through village structures and the courts.

Effectiveness Visualization

SUCCESS PROBABILITY (EIS sent back, village consent/compensation forced, conditions improved, delay, quiet redesign, or court win)

WITHIN-SYSTEM, LAWFUL APPROACH (technical + village-land + CHRAGG/court):

Combined lawful steps:	35–50%
Participation+village+CHRAGG:	30–45%
Village-land claim:	25–40%
Single lawful step:	5–25%

HIGHER-RISK / LOWER-RETURN (confrontation framed as anti-development):
(be very cautious) lower return, real personal risk

How to read this honestly. In Tanzania, the strongest and safest legal facts are usually **village-land** ones — a dealing in registered village land without the **Village Assembly's consent** or without **full, fair, and prompt compensation** is a real, court-recognised defect — followed by a **defective EIA or public-participation process**, raised through participation, **CHRAGG**, and, where a decision is unlawful, **judicial review**. The specialist tribunal is weak, so the High Court is the practical court route. And anything that looks like organised anti-development or foreign-backed opposition carries real risk. But even a modest "win" — an EIS improved, consultation and compensation forced, a project delayed or quietly relocated — is a real outcome achieved within the system.

Step Importance Ranking (When All Combined)

1. **Lawful local support (through the village)** — a united, law-abiding community acting through its **Village Assembly and Council** is the foundation and, on village land, the legal decision-maker.
2. **Documentation** — the raw material for participation, a CHRAGG complaint, and any court case.
3. **Village-land rights and public participation** — the distinctive, frequently-breached community lever, and the formal moment to object.
4. **CHRAGG and the courts** — the human-rights watchdog and the High Court that can find violations and quash unlawful decisions.
5. **Media (permitted)** — used carefully, through permitted outlets, to inform without inviting a crackdown.

Winning Tanzanian efforts combined a united community acting through the village, a careful evidence file, rigorous participation, a village-land or CHRAGG claim, and quiet work through lawful channels — never reckless, always within the law.

What Tanzanian Experience Actually Shows

A few patterns recur. **Village-land rights are the distinctive lever** — because registered village land requires the Village Assembly's consent and full, fair, and prompt compensation, a project that skips or rushes these has a genuine legal weakness, and land and compensation are the heart of most rural conflicts. **Public hearings and the EIS are real hooks** — the law requires participation and hearings and a Kiswahili summary, so a skipped or token process is a defect. **The courts can work, the tribunal largely cannot** — judicial review in the High Court is the practical route, since the specialist Environmental Appeals Tribunal has barely operated. **CHRAGG is an accessible watchdog** — it investigates rights and administrative violations. And — the sober, essential lesson — **land and conservation defence can be dangerous**: in conflicts like Ngorongoro, Loliondo, and the EACOP corridor, defenders have faced force, arbitrary arrests, and NGO crackdowns, so the effective path is lawful, technical, village-based, and safety-first. The through-line is that Tanzania rewards communities that work rigorously and lawfully within the system — above all through village-land rights — and punishes those seen to work against it.

STEP 1: TARGET IDENTIFICATION

You cannot act on what you have not precisely identified. Answer five questions, and keep the answers in a careful, private working document — this becomes the effort's factual spine. (Given the sensitivities, keep sensitive material secure.)

Core Questions You Must Answer

Question 1: What Exactly Will Be Affected?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, farms, grazing/pastoral land, rivers, forest, a protected area), and what the project would do to it — including any **land acquisition, resettlement, and compensation**. Obtain the **EIS** (and the scoping report) from **NEMC** — much is public, including the **Kiswahili non-technical summary**, and it is where the proponent, on the record, describes the impacts and admits the residual ones. List every admitted impact with its page reference. Pay special attention to **water, grazing and farmland, village land**, and the **compensation** terms.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) whether the project needs a **full EIS** or only a project brief; (b) which **NEMC** process applies and that the **Minister** issues the certificate; (c) which **sector regulator** grants the underlying licence; and (d) — decisively — whether the land is **registered village land**, engaging the **Village Assembly and Council** and the **compensation** rules. Note the district authorities too. Because Tanzania's live levers are participation, village-land rights, CHRAGG, and the courts, know both the decision-makers and the rights that apply.

Question 3: What Specific Action Changes It?

A project can be improved, delayed, or stopped at several points: an EIS **sent back** or a certificate **refused or conditioned**; **village-land consultation and consent** taken seriously, or **compensation** improved (often the real crux); a **CHRAGG** finding; a **High Court** order quashing an unlawful decision; or political defeat. Map the points and aim at the lawful ones the system actually responds to — above all the village-land and EIA defects.

Question 4: When Is the Decision Final?

Diarise the deadlines: the **public-participation and hearing** windows; the certificate decision; and the challenge clocks — an **appeal** against a certificate goes to the (weak) Environmental Appeals Tribunal, whose decisions can be **appealed to the High Court within 30 days**; **judicial review** must be sought **promptly** (strict time limits apply). Confirm the exact deadlines with a lawyer. Missing them can forfeit the route.

Question 5: Are There Documented Interests or Pressures?

Map, factually and very carefully: who profits, which companies (including foreign investors, state entities, and — in conservation-tourism conflicts — wealthy outside interests) are behind the project, whether land or licences changed hands before the proposal, and whether the project has a "strategic/national" designation. Use public sources — the business registry (BRELA), the mining and petroleum registries, and public notices. Build a dated, sourced record — but keep it **private and factual**, and never publish accusations; in Tanzania that can be dangerous. Section 11 and Section 13 cover doing this safely.

Output of Step 1: a careful, private one-page fact sheet with the project's exact description, whether a full EIS applies, that the Minister decides, whether it is village land, the compensation picture, the specific lawful lever to pursue, every deadline, and the interests involved.

Worked example: which lever is actually open

Suppose a mine is proposed on registered village grazing land, requiring resettlement and threatening a river the village uses. Working the questions: **Q1** — the EIS admits loss of grazing land, resettlement of households, and impacts on the river; the compensation terms are in the land documents. **Q2** — as a mine it needs a **full EIS** and an **EIA certificate** (NEMC recommends, the **Minister** issues), then a **Mining Commission** licence; the land is **registered village land**, so the **Village Assembly** must consent and be compensated. **Q3** — the live, lawful levers are: rigorous **public participation and a hearing**; insistence on proper **Village Assembly consultation and full, fair, prompt compensation** (often the crux); a **CHRAGG** complaint; and, if the certificate is unlawful, **judicial review**. **Q4** — you diarise the hearing window and the court clocks. **Q5** — BRELA and the mining registry show the (perhaps foreign)

developer. In an afternoon you know which levers are open — and that village-land rights, participation, CHRAGG, and the courts, pursued lawfully, are your strongest and safest cards.

STEP 2: DOCUMENTATION

Documentation separates an effort the authorities, CHRAGG, and the courts take seriously from one dismissed as complaint. It is also what your participation submissions, a CHRAGG complaint, and any court case all live or die on — and in Tanzania, documenting **land, grazing, and compensation, water impacts**, and the **adequacy of the village-land consultation and the public participation** is especially decisive. Build three layers. Keep sensitive material secure and share it only as needed; in Tanzania, careless handling can create risk.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — you cannot show harm without a baseline, and once ground is broken the "before" is gone. Start the day you learn of the project.

Land, grazing, and livelihoods. Document the land as it is used now — homes, farms, **grazing and pastoral routes**, water points — and the livelihoods it supports, because **land acquisition, resettlement, and compensation** are the crux of most Tanzanian rural conflicts, and the "before" picture is what a compensation and village-land claim rests on. Keep the **village land certificate**, any titles, and the record of the community's long use.

Water. Document the current state of rivers, streams, and water points — quality and use — using any available data and your own dated records and photographs.

Community and environment. Document habitats, any protected or sensitive areas, and the community's Village Assembly decisions and use of shared resources.

How to hold it. Keep everything dated, sourced, geo-referenced, and backed up securely in more than one safe place. A well-organised baseline is more useful than a merely large one — and for village-land and compensation cases, precise records of what each household holds and uses, and of the Village Assembly's decisions, are the decisive material.

A note on doing your own measurements — carefully. You do not always need a lab. Dated, geolocated photographs of your grazing land, a river, or a water point *before* the project are evidence, and simple, consistent records — a monthly photo from the same spot, a note of a stream's colour and flow, a log of the herd and the harvest — build a baseline no consultant's snapshot can match. Land, grazing, and water are decisive in most Tanzanian conflicts, so this ordinary record-keeping pays off, and for **compensation** claims especially, a precise, dated record of exactly what each household holds and uses — the fields, the animals, the trees, the structures — is the single most valuable evidence you can have, because compensation disputes turn on proving what was there. Two cautions specific to Tanzania: keep this **lawful and low-profile** — routine record-keeping of your own land and the Village Assembly's decisions is unremarkable and legitimate, but anything that looks like an organised outside monitoring campaign can be sensitive — and **secure your records**, keeping copies of the village land certificate, the Assembly minutes, and the valuation papers in more than one safe place. Capture the ordinary "before" now, quietly and carefully, because once ground is broken it is gone, and its absence is the most common reason harm and loss cannot later be proved.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the proponent's **EIS** — read it critically (use the **Kiswahili summary** to brief the community) and catalogue four things:

1. **Admitted impacts** — every harm the EIS itself concedes, with page references. Unarguable.
2. **Land, water, and compensation** — scrutinise the treatment of land acquisition, grazing loss, water impacts, and the **compensation and resettlement** plan, because these are the decisive issues and the ones most often mishandled.
3. **Underestimated or omitted impacts** — downplayed effects and **cumulative impacts** with other projects in the area (a common gap).
4. **Participation and village-land adequacy** — whether the **public participation and hearings** were genuine and properly documented, and — critically — whether the **Village Assembly and Council** were properly consulted and consented as the Village Land Act requires. A skipped or token village-land process is a real, court-recognised defect, so document every flaw.

Get expert eyes on it where you safely can. A critique carries more weight when a qualified professional — a hydrologist, land-use expert, or valuer (for compensation) — has reviewed it. Universities and technical experts can sometimes help quietly; but be mindful that in Tanzania, openly NGO-led opposition can be sensitive, so prioritise lawful, low-profile channels. The goal is a written, technical impact critique that NEMC, CHRAGG, and the court can rest on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human and economic terms, because that is what moves authorities and grounds a compensation and village-land claim. Document:

- **Health** — the specific risks (water contamination, dust, pollution) to nearby residents, drawing on recognised standards.
- **Livelihoods and compensation** — the effect on farming, grazing, and other livelihoods, and — critically — whether the **compensation and resettlement** offered are **full, fair, and prompt** as the law requires. This is often the heart of the matter.
- **Community, land, and culture** — the loss of grazing, farmland, water, and a settled way of life (for pastoralist communities, the loss of pasture and routes is existential), and the strain on the community.

Package this layer twice: a careful, factual version for participation, CHRAGG, and any court, and a simple version to explain the stakes to neighbours (in Kiswahili and the local language).

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record (land, grazing, water first) before ground is broken; secure the village land certificate and Assembly records.
- **Phase 2: Impact (Months 2-3)** — dissect the EIS and the participation and village-land record; get technical review where you safely can.
- **Phase 3: Health/Economic/Compensation (Months 3-4)** — quantify the human, economic, and compensation stakes and package them.

Common Documentation Pitfalls (What Fails)

- **Missing the participation/hearing window or the court time limit** — act on time with your best evidence.
- **Neglecting the village-land and compensation angle** — for most Tanzanian conflicts this is the winning issue; document the Assembly's role and the compensation precisely.
- **Ignoring the participation record** — a defective process is a real hook; document every flaw.
- **Only environmental data** — authorities respond to land, livelihood, and compensation arguments too. Breadth wins.
- **Ignoring the EIS's own admissions** — the EIS is a source of concessions. Quote it back, with page numbers.
- **Careless security** — protect sensitive material and, above all, people.

Documentation Budget Breakdown (TZS)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Baseline data gathering (land/water)	0–2m	3m–20m
Expert technical/valuation report	0 (quiet pro bono)	5m–40m
Independent sampling	500k–4m	4m–30m
Legal consultation	0 (where available)	2m–20m
Printing/local outreach	200k–2m	2m–10m

Most of this can be done for very little using the EIS and public data, though travel in remote areas adds cost. Spend where a report materially strengthens a claim — usually **land/compensation valuation, water, or the village-land record**. One solid, factual report on the decisive issue is worth more than five general ones — and it must be lawful and low-profile.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what matters already exists in public or obtainable records. The job is knowing which record holds which fact, and

pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at NEMC and the sector regulator. In Tanzania the official documents for a project — the project brief, the scoping report, the EIS (with its **Kiswahili summary**), and the certificate — are held by **NEMC**, and the underlying licence records by the **Mining Commission** or the petroleum authorities. Check these; much of the EIS is public.

The EIS and the participation record. Get the proponent's EIS as it is publicised — it is where the proponent admits harm. The **participation and hearing record**, and the **village-land consultation** record, are what you scrutinise for defects.

Village-land and compensation documents. The **village land certificate**, the Village Assembly minutes, the land-acquisition and resettlement decisions, and the **compensation and valuation** documents — the crux of most conflicts. These are held by the Village Council, the district land office, and the Commissioner for Lands.

Baseline data. Water and environmental data from NEMC and the relevant ministries; land and grazing records; and academic and NGO studies.

Ownership and interests. Company ownership from **BRELA** (the business registry); mining and petroleum licences from the sector registries; and public notices.

How to obtain a document. Tanzania has an **Access to Information Act, 2016**, under which you can request information held by public authorities (with exemptions), and the EIA Regulations require certain disclosure. Use the wording in Section 8E — kept simple and lawful.

CHRAGG. The **Commission for Human Rights and Good Governance** can investigate and, in doing so, obtain information and produce findings that support your case — a relatively accessible, low-cost route.

Careful, lawful help. Some lawyers, legal-aid organisations, and land-rights groups advise on village-land and administrative matters; approach them discreetly. Be aware that **NGOs operate under real constraint** in Tanzania and registrations have been reviewed and threatened, so prioritise lawful, local, village-based channels and professional legal advice over anything that looks like organised outside campaigning.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to NEMC and the sector regulator, and the local-ally entries point you to lawful sources of help. Pull that thread first, then follow it into NEMC, the village and land records, and the requests above — always lawfully and carefully.

STEP 3: BUILDING LOCAL SUPPORT

Critical Insight About Organising (Lawfully)

In Tanzania, a united community that works **lawfully and through its village structures** carries real weight — but organising that can be framed as anti-development or foreign-backed opposition carries genuine risk. So the goal here is different from an open democracy: build broad, calm, law-abiding support around **concrete, lawful concerns** (grazing land, water, compensation, farms), work through the **Village Assembly and Village Council** and other permitted structures, and avoid anything — confrontation, unauthorised gatherings, or campaigning that reads as anti-government — that invites a crackdown. The village structures are not just a channel: on **registered village land**, the **Village Assembly is the legal decision-maker**, which makes lawful village organising both safe and powerful.

Three principles carry special weight here: **lawfulness and calm** (frame everything as protecting residents' lawful land and livelihood rights and ensuring the project follows the law, not as opposing development); **the village as the vehicle** (act through the Village Assembly and Council, which hold real legal power over village land); and **safety first** (protect leaders, keep everything lawful and documented, and get legal advice — the risks in land and conservation conflicts are real, and no project is worth a person's safety).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: Start with the most affected, and the village leadership. Reach the households whose land, grazing, water, or livelihood is most directly at stake, and engage the **Village Council and respected elders** early. Listen first: concrete concerns (grazing loss, compensation, a threatened river) motivate and are lawful to raise.

Step 1b: Group by concrete concern. Let people come together around specific, lawful issues — grazing and land, water, compensation, farms. These are legitimate matters the authorities are used to hearing.

Step 1c: Work through the Village Assembly. Rather than forming an outside campaign group (which can be sensitive), work through the **Village Assembly and Council** — the legal decision-makers for village land. Put the matter on the Assembly's agenda, take **formal, minuted Assembly decisions** (these carry real legal weight on village land), and choose respected residents to represent the community lawfully. Where possible, get **legal advice** early on the village-land and compensation rules.

PHASE 2: PUBLIC ENGAGEMENT (Months 2-3)

Step 2a: Village Assembly meeting. Hold or use a **Village Assembly** meeting to inform residents, agree the concrete concerns, and mandate representatives; bring the EIS's admissions (via the Kiswahili summary), the compensation terms, and the participation deadline. A formal Assembly decision is both lawful and legally powerful on village land.

Step 2b: Clear materials. Simple, factual, sourced materials in **Kiswahili and the local language**; lead with the land, grazing, water, and compensation stakes. Explain how residents can take part in the **public participation and hearing**. Avoid anything that reads as anti-government.

Step 2c: Full participation in the hearing. Turn people out for the **public participation and public hearing** and get concerns recorded, and **document the process** — because a defective participation or village-land consultation is a real, lawful ground. Many residents' recorded concerns carry weight.

Step 2d: Raise it through permitted channels. Ask the Village and Ward leadership, and the district councillors, to relay the community's lawful concerns.

PHASE 3: BROADENING SUPPORT (Months 3-6)

Step 3a: Careful outreach. Bring in lawful, credible support — sympathetic technical experts and valuers (quietly), lawyers or legal-aid and land-rights organisations, and neighbouring villages facing the same project. Each adds credibility and capacity. Be cautious with anything that could be portrayed as outside or foreign-directed.

Step 3b: Clear roles. Agree who represents the community, who handles the CHRAGG or court matter, who keeps the documents, and who liaises with the authorities and any lawyer — and keep it calm and lawful. Clarity prevents both confusion and exposure.

Step 3c: Coordinated lawful work. Joint participation, a shared village-land or CHRAGG claim, shared documents and legal advice, and a coordinated, respectful approach to NEMC, the district, and the sector regulator — especially where several villages are affected by one project (as with a pipeline or a large mine).

PHASE 4: SUSTAINED, LAWFUL PRESSURE (Months 6-12)

Step 4a: Use the lawful channels. Pursue the **CHRAGG** route, petitions to the district and national authorities, and — where a decision is unlawful — the **courts**, the formal, lawful ways to press for review and correction.

Step 4b: Careful communication. Where possible, work with **permitted media** to inform the public factually (Section 10). Keep it factual and non-political.

Step 4c: Prevent failure points — and protect people. Efforts fail when they miss the participation window or the court time limit, rely on emotion over documented fact, or — most seriously — stray into confrontation that draws a crackdown and endangers people. Diarise every deadline, build the factual file, keep everything lawful and calm, work through the Village Assembly, and protect leaders above all.

Worked example: a village that works through the Assembly

A village faces a mine that will take grazing land and threaten its river. Anger is high; some talk of blocking the road. What is both safest and most effective happens differently. First, the community works **through its Village Assembly**, putting the matter on the agenda and taking **formal, minuted decisions** — because on registered village land the Assembly is the legal decision-maker, which is both lawful and powerful. Second, it insists on proper **village-land consultation and full, fair, prompt compensation**, and documents where these were skipped — the strongest, safest ground Tanzania offers. Third, it turns people out for the **public hearing** and records its flaws. Fourth, it gets **legal advice** and a **valuer**, and prepares a **CHRAGG complaint** and, if needed, a **judicial review** — the lawful routes. No confrontation, nothing anti-government — but real, lawful pressure that can force consultation, improve compensation, tighten the project, and, where the decision is unlawful, have a court quash it. The lesson generalises: **in Tanzania, working through the Village Assembly on concrete land and compensation rights, documenting the participation, and using CHRAGG and the courts is what achieves results while keeping people safe.**

Support-Building Budget: Year-Long Effort (TZS)

Very low. A lawful, village-based effort operates on **little more than the cost of meetings, materials, travel, and copying** — a few hundred thousand to a few million shillings, mostly volunteer. The main potential costs are **legal advice and a valuation** for a village-land or compensation case. Communities typically fund this through **modest local contributions**. Keep transparent, collective accounts through the Village Assembly, and — crucially — avoid outside funding arrangements that could be portrayed as foreign-directed campaigning, which in Tanzania carries real risk.

STEP 4: LEGAL CHALLENGES

Tanzania gives communities a real, if narrow, set of lawful tools — public participation, the EIA process, village-land rights, the appeal and CHRAGG routes, and the courts — and choosing the right one, and using it lawfully, is essential. Three tracks — participation and village land, oversight (CHRAGG), and appeals and the courts. Throughout, get legal advice where you can, and keep everything within the law.

TRACK 1: PARTICIPATION AND VILLAGE LAND (the front door)

- **Public participation and the hearing.** Take part — and get objections on the record — in the **public participation and public hearings** during the EIA review. It can shape the EIS and the conditions, and — because it is a legal requirement — a **skipped or token process is a genuine defect** you can later raise. Document the process meticulously.
- **Village-land consultation and consent (the powerful lever).** Where the land is **registered village land**, the **Village Assembly and Council** must be properly consulted and must consent to dealings in the land, and any acquisition requires **full, fair, and prompt compensation**. Insist, in writing and through formal Assembly decisions, that these be followed — and where they are skipped or the compensation is inadequate, that is a real, court-recognised ground and often the strongest lever you have.

TRACK 2: OVERSIGHT — CHRAGG (the accessible watchdog)

- **A complaint to CHRAGG.** The **Commission for Human Rights and Good Governance** investigates **human-rights violations and administrative injustice** — including breaches of land rights, failures of consultation, and unfair treatment by officials. A complaint can produce findings and recommendations that generate real leverage and support a court case. It is relatively accessible and low-cost.

TRACK 3: APPEALS AND THE COURTS (the decisive route)

- **Appeal to the Environmental Appeals Tribunal.** EMA provides an **appeal against the EIA-certificate decision** to a specialist **Environmental Appeals Tribunal**. In principle this is the tailored route — but, honestly, the Tribunal has been widely criticised as barely operational, so confirm its current status with a lawyer and do not rely on it alone.
- **Judicial review in the High Court (the practical route).** Challenge the **lawfulness of the certificate** or a decision — for a defective process, a failure to hold a required hearing, a breach of the village-land rules, or an unlawful or unreasonable decision — and ask the High Court to **quash** it and order it be retaken. Seek it **promptly** (strict time limits). Decisions of the Tribunal can also be **appealed to the High Court within 30 days**.
- **Constitutional petition and rights enforcement.** Where a constitutional right (to be heard, to property) is breached, a petition to the High Court is possible.
- **Civil claims and injunctions.** For harm or to restrain unlawful works, a civil claim and an **injunction** may be available — an injunction can prevent irreversible harm pending the case.

The three challenge types

TYPE 1: PARTICIPATION + VILLAGE LAND (the front door)

Engage the participation and hearing, and insist on village-land consultation, consent, and compensation — the source of your best and safest grounds.

TYPE 2: CHRAGG (the accessible watchdog)

A relatively accessible complaint that can find a rights or administrative violation and generate leverage.

TYPE 3: APPEALS AND THE COURTS (the decisive route)

The (weak) Tribunal appeal and, practically, **judicial review in the High Court** — the route that can quash an unlawful certificate — with an injunction.

Legal Strategy Decision Tree

1. **Is participation / a hearing happening?** → Take part and **document every flaw** now — it is a lawful ground.
2. **Is it village land?** → Insist on **Village Assembly consultation, consent, and full/fair/prompt compensation** — often the strongest lever — through formal decisions and, if breached, a claim.
3. **Is there a rights or administrative violation?** → File a **CHRAGG** complaint.
4. **Has an unlawful certificate/decision issued?** → Seek **judicial review** in the High Court **promptly**, with an **injunction** (and check the Tribunal route).

Success Factors

The right ground (a breach of village-land consultation, consent, or compensation; a defective participation/EIA; an unlawful decision); a careful, documented file (especially the village-land and participation record); standing; timely action (the court time limits and the 30-day Tribunal-to-High-Court window); and legal advice. Missing any one weakens the effort — and, throughout, keeping everything lawful and safe.

What to Avoid

Missing the participation window or the court time limit; relying on the weak Tribunal alone; failing to document the village-land and participation flaws; relying on emotion rather than a documented defect; and — most importantly — anything that can be treated as anti-development or foreign-backed opposition, which carries real personal risk and rarely helps the project fight.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific, lawful ground. Here is how the records you gathered map onto the arguments that most often work in Tanzania — so you raise the right fact through the right channel.

A village-land breach — no Assembly consent or inadequate compensation → claim / judicial review (the strongest ground). Feed it with: the village land certificate, the Assembly minutes (or their absence), and the compensation and valuation shortfall.

A skipped or token public participation / hearing → EIA defect. Feed it with: your documented record of who was (not) heard and how the hearing was run.

A weak or incomplete EIS → sent back / refusal ground. Feed it with: the EIS's gaps (land, water, compensation) and any failure to provide the Kiswahili summary or consult.

Inadequate mitigation or ignored impacts → conditions / court ground. Feed it with: the specific harms the mitigation fails to address, expert-assessed.

A rights or administrative-justice violation → CHRAGG / court. Feed it with: the unlawful or unfair conduct of NEMC, the Minister, or an official, documented from the record.

Ignored cumulative impacts → EIA ground. Feed it with: the other projects in the area and the EIS's silence on their combined effect.

The pattern: match one clean, documented fact to one lawful ground, **lead with the village-land and compensation claim** (Tanzania's strongest, safest lever) and the **participation and EIA** grounds, raise them through **participation, the Village Assembly, and CHRAGG**, and reserve **judicial review** for a clean unlawful decision, with an injunction. A lawyer or land-rights organisation can tell you which ground is live — approach them discreetly.

STEP 5: MEDIA & COMMUNICATION

In Tanzania, media is a double-edged tool: **permitted, factual coverage** (of land, compensation, or pollution) can move authorities to act, but anything that reads as anti-government campaigning, or that involves foreign or "hostile" outlets, carries real risk, and the media itself operates under constraint. So the goal is to inform lawfully and factually — not to campaign against the state.

How This Works

Tanzanian media do sometimes report **land disputes, compensation grievances, and pollution** — these are treated as livelihood and administrative issues. A factual, well-documented story about grazing land lost or unfair compensation, offered to a **permitted outlet**, can prompt authorities to respond. The safest coverage frames the issue as protecting residents' lawful rights and ensuring the project follows the law.

What Makes a Safe, Effective Story

Local stakes + a concrete, lawful concern (land, compensation, water) + the project's own documents + a human face = coverage that helps. Keep it factual, non-political, and sourced. Never frame it as opposition to the government or development as such.

Which Outlets

Work with **permitted Tanzanian outlets** and their environment or society desks, and community radio (which reaches affected communities directly in Kiswahili). **Be cautious with foreign or exile outlets**, and avoid framing that could be portrayed as anti-state — association with these can turn a livelihood issue into a security matter and endanger people.

Building Trust Carefully

Give reporters accurate, sourced material and be a reliable, factual contact. One trusted relationship with a mainstream journalist who covers land or environment can help. Offer access to the site and to affected residents — with their consent and safety in mind.

Why careful communication matters

Even quiet, factual coverage can reach an official who orders a review, a lawyer, or CHRAGG — and it creates a lawful public record. But in Tanzania, the calculus is different: the wrong kind of publicity can endanger people. So communicate to inform lawfully, keep it factual and non-political, and always weigh safety first.

What to Avoid

Anything that frames the issue as political opposition; contact with outlets the state deems hostile; foreign-funded or foreign-directed campaigning; and publishing accusations you cannot prove — all of which carry real risk in Tanzania.

LETTERS & SUBMISSIONS

Ready-to-adapt templates. Keep them factual, dated, sourced, and — importantly — **lawful and non-political**. Submit important ones through the authority's official registry and keep dated proof of anything you file — Tanzanian deadlines (the court time limits, the 30-day Tribunal-to-High-Court window) are strict. Have a lawyer review anything heading toward CHRAGG or court, and never include accusations you cannot prove.

8A. Note to a permitted local journalist (factual)

Subject: [District]: residents' concerns about [project] — documents attached

Ndugu [name],

A [project type] is proposed at [location]. Its own EIS admits [specific admitted impact, quoted, with page number], including loss of [grazing land / farms] and impacts on [the river] that our village depends on, and questions remain about [compensation / consultation]. Residents wish to ensure the project follows the law and protects our lawful land and livelihood rights.

I can share the documents and connect you with affected residents. Might you look into it?

[Name] · [village] · [phone]

8B. Letter to a decision-maker (NEMC / the Minister / district)

Subject: Concerns regarding [project] — [reference number]

To [the Director-General, NEMC / the Minister responsible for Environment / the District Executive Director]:

We, residents of [village] affected by [project] at [location], respectfully raise the following lawful concerns and request that they be addressed before any EIA certificate is issued:

1. [Concern 1 — e.g. our land is registered village land, and the Village Assembly has not consented as the Village Land Act requires.]
2. [Concern 2 — e.g. the compensation offered is not full, fair, and prompt.]
3. [Concern 3 — e.g. the EIS underestimates impacts on our grazing land and river.]

We wish only for the project to comply fully with the law and for our lawful rights to be protected. We request a written response and are ready to provide our evidence.

[Signatories, village, contact]

8C. Submission in public participation / at the hearing

Submission on the EIS for [project], NEMC reference [number]

The affected residents of [village] submit the following in the public participation / at the public hearing: 1. **Village land.** [Our land is registered village land; the Village Assembly's consultation and consent, and full/fair/prompt compensation, are required and have not been properly carried out.] 2. **Land and water.** [Loss of grazing and farmland, and impacts on our river, are underestimated.] 3. **Participation.** [We note that [this is the first notice / affected residents were not consulted]; we ask that participation be carried out fully as the law requires, including the Kiswahili summary.] 4. **Cumulative impact.** [This project, with others nearby, should be assessed together.]

We ask that these concerns be reflected, and that the certificate be refused or strictly conditioned.

[Date, village, contact; attach evidence]

8D. Village Assembly resolution (on village land)

Resolution of the Village Assembly of [village], [date]

At a duly convened Village Assembly, the residents of [village] resolved: 1. That the [project] affects our registered village land and our grazing, farming, and water. 2. That the Village Assembly has **not consented** to any dealing in our village land for this project, and that any acquisition requires our consultation and full, fair, and prompt compensation as the Village Land Act requires. 3. That we authorise [named representatives] to raise these concerns lawfully with NEMC, the district, and, if necessary, CHRAGG and the courts.

[Signed by the Village Chairperson and Executive Officer; minutes attached]

8E. Access-to-information request

Subject: Request for information under the Access to Information Act, 2016

To [NEMC / the district land office]:

Under the **Access to Information Act, 2016**, we request: 1. the EIS and certificate file for [project], including the Kiswahili summary; 2. the public-participation and hearing record; 3. the village-land, acquisition, compensation, and valuation documents affecting [village].

Please provide these within the statutory period. [Name/village, date, contact]

8F. Complaint to CHRAGG

Subject: Complaint regarding violation of land rights / administrative injustice — [project]

To the Commission for Human Rights and Good Governance:

We, residents of [village], complain regarding [project] at [location]. [Our village-land rights were violated because the Village Assembly was not consulted / compensation is not full, fair, and prompt / the process was unlawful.] We attach [evidence]. We request an investigation and findings, and ask to be kept informed.

[Village, date, contact]

8G. Factual public information note (for permitted use)

[Village] residents' information note — [date]

Residents of [village] have raised lawful concerns about [project] at [location], including [top two concerns — e.g. village-land consent and compensation]. The project's own EIS admits [quoted impact]. Residents ask that the project comply fully with the law and protect their lawful land rights, and have submitted their concerns to [authority].
Contact: [name, phone].

8H. Instruction to counsel (judicial review + injunction)

Subject: Proposed judicial review regarding [project]

To [counsel]:

Residents of [village] wish to seek **judicial review** in the High Court of the [EIA certificate / decision] for [project], on the grounds that [the village-land consultation and consent were not obtained / the process was defective / the decision was unlawful], and to seek an **injunction** to restrain works pending judgment. We can provide the village land certificate, the Assembly minutes, the compensation documents, and our evidence. Please advise on the **time limit** (we must move promptly), the Tribunal route, standing, the injunction, and strategy.

[Date, signature]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual reference and dates, keep everything **factual, lawful, and non-political**, and — for a CHRAGG or court step — have a lawyer review it. Deadlines are strict (the participation window; the **court time limits**; the **30-day** Tribunal-to-High-Court window). Keep dated proof of everything you file. Above all, **never publish accusations you cannot prove, and avoid anything that could be treated as anti-development or anti-government** — in Tanzania, that can endanger people. When in doubt, get legal advice and choose the safer course.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can sustain a long effort. If you have limited time, you can still act lawfully and usefully — while keeping yourself safe. In rough order of impact for the effort:

1. **Use the Village Assembly.** On registered village land, a **formal, minuted Village Assembly decision** withholding consent, and insisting on consultation and full/fair/prompt compensation, is your single highest-leverage lawful move — it is both safe and legally powerful.
2. **Get the EIS (and its Kiswahili summary).** Obtain it from NEMC and read the land, water, and compensation sections. It is your key document and reveals the project's weaknesses.
3. **Take part in the public hearing and document it.** Attend, submit concerns in writing, and record any flaws — a defective participation or village-land consultation is a lawful ground.
4. **Insist on lawful compensation.** For most residents, the **full, fair, and prompt compensation** rule is the most winnable lever; document what is offered against what the law requires.
5. **File a CHRAGG complaint** if land rights or administrative fairness are breached. It can produce findings without a lawyer.
6. **Quote the EIS's worst admission back to NEMC and the Minister** (Section 8B). The project's own words carry weight.

7. **Get legal advice discreetly** on the court time limits and your strongest ground — and to keep you safe and lawful.

If you do only the first three, you have used the Village Assembly's real power, secured your documents, and put your concerns on the record — and left a trail others can build on. That is a real contribution. Throughout, keep everything lawful and non-political, and prioritise your safety above all.

WHEN THE SYSTEM IS TILTED — AND HOW TO STAY SAFE

This section is essential reading for Tanzania. The system is not merely tilted toward development — it operates with a **restricted and tightening civic space**, a barely-functioning specialist tribunal, a certificate issued by a Minister, and a documented record of **force and arbitrary arrests against land defenders** and **crackdowns on NGOs**. Being honest about this is how you choose tools that are both effective and safe.

What This Reality DOES (and DOESN'T DO)

The reality prioritises investment and state-led development, keeps the final certificate decision political, and treats confrontation or NGO-led opposition as a threat. It does **not** eliminate every lawful lever: the **Village Land Act** gives real, court-recognised rights of consultation, consent, and compensation; the **EIA** requires participation and hearings; **CHRAGG** investigates rights and administrative violations; and the **High Court** functions for judicial review. The key is to use these **lawful, technical, within-system** levers — above all village-land rights — work through the **Village Assembly**, and avoid anything that can be framed as anti-development — while protecting people.

Reading Your Situation

- **A concrete, lawful grievance (village land, compensation, a procedural defect).** These are legitimate matters to raise through the Assembly, participation, CHRAGG, and the courts, and are where communities most often win improvements. This is the safe, productive zone.
- **A project the state strongly backs (a strategic mine, pipeline, dam, or "conservation" scheme).** Expect the certificate to issue and limited room; concentrate on lawful improvements — consultation, compensation, mitigation — and accept that delay and improvement may be the realistic wins.
- **The danger zone.** Anything resembling confrontation, unauthorised protest, foreign-directed campaigning, or public accusation against the state — this carries **real personal danger**, as the Ngorongoro, Loliondo, and EACOP experiences show, and rarely helps the project fight. Stay out of it.

Documented Dynamics — Read This Honestly

The record is sobering. In land and conservation conflicts — the **Ngorongoro and Loliondo** evictions and the **EACOP** corridor — the government has used **force, live ammunition, and arbitrary arrests of community leaders (including Village Councillors and Chairpersons)**, and international bodies have found free, prior and informed consent treated as a formality rather than a right. The government has also moved to **review and constrain NGO registrations**. At the same time, **village land is legally registered and protected**, the courts do function for judicial review, and CHRAGG and international attention provide some check. This is the essential context: the effective, safe path in Tanzania is **lawful, technical, village-based, and channelled** — not confrontation, and not association with anything the state may deem hostile. No project fight is worth a person's safety or liberty.

Assessment Framework — Determine Your Situation

Ask: Is this a concrete, lawful grievance (village land, compensation, a procedural defect) I can raise safely? Is it registered village land (often the strongest, safest lever)? Was participation or consultation defective? Can I get legal advice? Is there any risk this could be framed as anti-development (if so, step back and get advice)? The answers tell you whether to proceed with the Assembly, participation, CHRAGG, and court routes — and, above all, how to stay safe.

Direct Action: A Clear Caution (Descriptive, Not Prescriptive)

Unlike in open democracies, **confrontation, unauthorised protest, and NGO-led campaigning carry serious risk** in Tanzania, and this guide does **not** recommend them — the record in land and conservation conflicts includes violence

against defenders. The lawful path here is to raise **concrete grievances through the Village Assembly, participation, CHRAGG, and the courts**. Keep strictly within the law, avoid anything that reads as anti-government, and get legal advice before any collective action. Each person's safety is paramount.

Honest Assessment

Within these tight constraints, lawful effort still achieves real things — improved compensation, forced consultation, safer projects, delay, quiet relocation, and sometimes a court win — and these are genuine wins, especially on village land. But the constraints and dangers are real, some fights cannot be won safely, and no outcome is worth endangering a person. Concentrate on the lawful, technical, village-based levers; work through the Assembly; get legal advice; and put safety first, always.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions, or decisions you disagree with, not provable corruption. Corruption exists in Tanzania, but for a community the safest and most useful lens is **structural**: who benefits, and through which channel, so you can target the lawful lever. Handle any suspicion of corruption with great care: **public accusation is dangerous** in Tanzania and can rebound on you.

NEMC, the Minister, and the certificate. The structural pressure point: the technical regulator (**NEMC**) only **recommends**, while the **Minister** — a political actor — makes the final call, and the EIS is written by experts the developer pays. Signs: a certificate issued over clear objections, a rushed or waved-through EIS, no real hearing. Lever: the EIA rules, the participation and village-land record, CHRAGG, and judicial review.

The land and compensation system. Land is the crux of most corruption concerns — village land acquired without proper Assembly consent, undervalued compensation, and reallocation to investors. Signs: consent obtained irregularly, compensation below fair value, quiet reallocation. Lever: the **village-land claim** and CHRAGG — the most winnable and legitimate route.

District and political officials. Capture here runs through patronage and powerful investor interests (including, in conservation-tourism conflicts, wealthy foreign interests). Signs: an official tied to the developer, pressure on the village leadership, protection for the project. Lever: CHRAGG, the Controller and Auditor-General, and the anti-corruption bureau (PCCB) for genuine wrongdoing.

The companies and investors. Watch for licences or land quietly acquired before a project is public, opaque or well-connected ownership, and — in tourism/conservation — powerful outside interests behind "conservation" framings. BRELA and the sector registries surface ownership.

The courts and "strategic project" framing. The courts function for judicial review but operate under pressure, and "strategic/national" framings grant wide discretion. Treat the High Court as a genuine but not guaranteed route, and route genuine corruption to the control bodies.

How to act on it, safely. Document from records, never rumour, and keep it private. Route any genuine concern through the **lawful channels** — CHRAGG, the Controller and Auditor-General, the **PCCB (Prevention and Combating of Corruption Bureau)** — and **through a lawyer** where possible. Do **not** make public accusations, contact hostile outlets, or frame the matter politically: in Tanzania this is dangerous and can turn a land grievance into a security case against you. Keep to the provable, lawful, factual ground — usually the village-land, compensation, and procedural issues — and protect your people.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other over an effort that typically spans a year or more (and a court case can run longer). Here is how they fit onto one timeline — built around Tanzania's deadlines and, throughout, around lawfulness and safety.

Realistic 12-Month Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the careful, private one-page fact sheet — project, whether a full EIS applies, that the Minister decides, whether it is village land, the compensation picture, the lawful lever to pursue, every deadline. - Work through the **Village Assembly and Council**; put the matter on the agenda and take a formal decision. - Begin baseline documentation (Step 2, Layer 1), land, grazing, and water first; secure the village land certificate and Assembly minutes. - Obtain the **EIS and its Kiswahili summary** and the compensation documents. - Get **legal advice** on the village-land and court routes, discreetly.

Months 2-3 (Engagement). - Take part in the **public participation and hearing** and **document every flaw** (Step 4, Track 1). - Pass a **Village Assembly resolution** on consent and compensation (Track 1). - File a **CHRAGG complaint** if land rights or fairness are breached (Track 2). - Raise concerns through the district and permitted media (Steps 3 & 5). - Complete the EIS critique and the compensation/valuation analysis (Step 2, Layers 2-3).

Months 3-6 (Broadening). - Broaden lawful support carefully; line up technical, valuation, and legal help; coordinate with other affected villages (Step 3, Phase 3). - Prepare the **village-land or judicial-review** case with counsel. - Sustain lawful, factual pressure through permitted channels.

Months 6-12 (Lawful pressure & decision). - Pursue the **CHRAGG** route and petitions to the district and national authorities (Step 3, Phase 4). - If the certificate is unlawful, seek **judicial review** in the High Court **promptly**, with an **injunction** (Track 3) — and check the Tribunal route and the 30-day window. - Keep everything lawful, factual, and safe throughout.

Beyond 12 months. - A court case can run for a year or more; an injunction protects you meanwhile. - If the project proceeds, monitor compliance and the environmental audits, and pursue further lawful complaints for any breach. - Keep the Village Assembly record and lawful unity intact — and keep protecting people.

Warning Signs — Act Early

The EIA participation or a land-acquisition notice appears (act now); the EIS is published; a compensation or valuation exercise begins; a "strategic project" designation is used; consent is being sought irregularly from the village leadership. Early, lawful action — passing a Village Assembly resolution, taking part in the hearing, and documenting the village-land process — is far stronger than reacting late, because the participation window and court time limits are short.

Key Principles (What Separates Effective Efforts from Failed Ones)

Effective efforts: identify the lawful lever (usually village land and compensation, participation, and the EIS); work through the Village Assembly and keep the community united and calm; document rigorously, land and water first; use participation, village-land rights, CHRAGG, and the courts; get legal advice; hit every deadline; and — above all — keep everything lawful and safe. Failed or dangerous efforts: miss the participation window or the court time limit; neglect the village-land route; rely on emotion; or stray into confrontation that endangers people.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Tanzania takes forms suited to its constraints, and it is worth naming them so you recognise a win when you get one: - an EIS **sent back or improved**, or a certificate **refused or conditioned**; - **village-land consultation and consent taken seriously**, and **compensation improved** to full, fair, and prompt — often the most achievable win; - the project's **conditions and mitigation tightened**; - a **CHRAGG finding** of a rights or administrative violation that shifts the politics; - a **High Court** order quashing an unlawful certificate, or an **injunction** halting works; - a project **quietly redesigned or relocated** after lawful, documented pressure; - and, throughout, a community that has acted lawfully and kept its people safe.

Tanzanian communities have achieved these — through lawful, technical, village-based effort, not through confrontation.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone — and weigh **safety** at every one. If the village-land ground is strong, or a participation or compensation defect is clear, the CHRAGG and court routes may be well worth it. If the time limits have passed, effort shifts to monitoring, further lawful complaints, and district channels. If continuing would require stepping into confrontation or unsafe territory, **stop** — no project is worth a person's safety. Continuing lawfully is often right;

escalating unsafely never is.

The Bottom Line

Tanzania's system prioritises state-led development, issues the EIA certificate through a Minister, has a barely-functioning appeals tribunal, treats consent as a formality, and restricts civil society — and has used force against land defenders — so opposition here must be, above all, **lawful, technical, and safe**. But the system does provide real levers: the **Village Land Act** gives genuine, court-recognised rights of **consultation, consent, and full/fair/prompt compensation** on registered village land — often your strongest lever; the **EIA** requires **public participation and hearings** and a Kiswahili summary; **CHRAGG** investigates rights and administrative violations; and the **High Court** functions for judicial review, with injunctions. Communities that work through the **Village Assembly** on concrete land and compensation rights, document to the land, water, and participation standards, engage the hearing and use CHRAGG and the courts with legal advice rather than confrontation, keep everything lawful and non-political, and put safety first have forced consultation, improved compensation, tightened projects, delayed and relocated developments, won court orders, and protected their people — and can again. No single step wins; the combination does, within the law. Start today by convening your Village Assembly, obtaining the EIS, documenting your land, getting legal advice, and identifying which lawful lever is open — and, throughout, keep your people safe.